

AOC-497.3 Doc. Code: OAE
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Commonwealth of Kentucky
Court of Justice www.kycourts.gov
KRS 431.076



**ORDER FOR AUTOMATIC EXPUNGEMENT
OF RECORD UPON
ACQUITTAL OR DISMISSAL WITH PREJUDICE**

Case No. _____
Court _____
County _____
Division _____

THE FOLLOWING EXPUNGEMENTS ARE REQUIRED BY LAW AND DO NOT REQUIRE ANY PETITION, MOTION, OR OTHER ACTION OF THE DEFENDANT

COMMONWEALTH OF KENTUCKY
VS.

PLAINTIFF

NAME
ADDRESS

DEFENDANT

() PHONE NUMBER

Jail ID Number _____ (optional)

Defendant's Birthdate: _____

Defendant's SSN: _____

The Court makes the following findings of fact:

1. Defendant was charged with the following:

CHARGE: _____
CHARGE: _____
CHARGE: _____

CHARGE: _____
CHARGE: _____
CHARGE: _____

2. On or after **July 15, 2020**, Defendant was acquitted of the above-listed charge(s) **OR** the above-listed charge(s) was/were dismissed with prejudice against the Defendant and the dismissal was **NOT in exchange for a guilty plea** to another charge.

3. Thirty (30) days have expired since the entry of the order of acquittal or dismissal with prejudice.

4. Defendant has not objected to the expungement.

THEREFORE, IT IS HEREBY ORDERED:

1. The above-listed **charge(s) is/are EXPUNGED from the court records**. Upon entry of this Order, the proceedings shall be deemed never to have occurred; the Court shall reply to any inquiry that no record exists; and Defendant shall not have to disclose the fact of the record or any matter relating to it on an application for employment, credit, or other purpose.
2. **With the exception of any records in the custody of the Department for Community Based Services**, the Kentucky State Police and other following agencies with custody of records relating to the arrest, charge or other matters arising out of the arrest or charge, shall expunge the record, including but not limited to; arrest records, fingerprints, photographs, index references, or other documentary or electronic data, **and shall certify to the Court on this form** within sixty (60)

days of the entry of this order that the required expunging action has been completed:

3. Inspection of the records included in this Order may hereafter be permitted by the Court only upon Petition by the person who is the subject of such records, and only to those persons named in such Petition.

_____, 2_____
Date

Judge

AGENCY CERTIFICATION

_____, an above-named agency ordered to expunge records in our custody, hereby certifies that ☐ the **agency has no records** in its custody relating to the Defendant/matter OR ☐ the **agency has completed the expungement** as directed by this Court.

Date: _____, 2_____. Agency Records Custodian: _____

Distribution: Original - Court File

Copies: Defendant/Attorney; Kentucky State Police, 1266 Louisville Road, Frankfort, KY 40601; Named Agencies

Circuit Clerk: Refer to Clerk's Manual for instructions on filing this certification.